

Shambhu Singh v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 27 November 2024 · 2024:AHC:185941-DB · WRIT - C No. - 39343 of 2024 · **Writ disposed as not maintainable, with liberty to avail clause 6.8.**

HEADNOTE

A writ to quash a provisional notice dated 28.8.2024 demanding Rs.10,56,306 is not maintainable where clause 6.8 of the U.P. Electricity Supply Code, 2005 affords an effective alternative statutory remedy. The petition was disposed of with liberty to avail that remedy, if so advised.

FACTUAL SUMMARY

Shambhu Singh filed a writ in the Allahabad High Court to quash a provisional notice dated 28 August 2024 issued by respondent no. 4 of the Corporation. The notice required him to deposit Rs.10,56,306, to produce all evidence within fifteen days of receipt, and to appear on 16 September 2024 between 11:00 and 14:00 hours. The Corporation objected that clause 6.8 of the U.P. Electricity Supply Code, 2005 was an effective alternative statutory remedy. Counsel for the petitioner did not dispute that objection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

alternate remedy against provisional notice

HOLDING

A writ challenging a provisional notice that calls for deposit of a quantified sum, production of evidence, and personal appearance is not maintainable where clause 6.8 of the U.P. Electricity Supply Code, 2005 provides an effective alternative statutory remedy. The petition is disposed of with liberty to the consumer to avail that remedy, if so advised. ¶ 3-4

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Division Bench accepted that clause 6.8 is an effective alternative statutory remedy against the provisional notice dated 28.8.2024 and held the writ not maintainable. ¶ 3-4

assessment-6.8-alternate-remedy The demand of Rs.10,56,306 in the provisional notice was not examined on merits and was left to the clause 6.8 remedy, if the petitioner chose to avail it. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE PROVISIONAL NOTICE DATED 28.8.2024 AND OF THE DEMAND OF RS.10,56,306

The Court did not examine the notice on merits and left the petitioner to the clause 6.8 remedy, if so advised. ¶ 4